

GZ: 2021-0.717.031 dated October 19, 2021 (Case Number: DSB-D124.3120)

[Note from the editor: Names and companies, legal forms and product names, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Anita A*** (complainant) from **** O***wald, represented by Mag. Dieter D***, attorney at law and defender in criminal matters in **** G***stadt, dated October 12, 2020 (in the version of the deficiency remediation submission dated October 29, 2020) against Neidhart N*** (respondent) from **** H****bad, represented by Mag.a Johanna F***, attorney at law in **** R***tal, regarding a violation of the right to confidentiality as follows:

1. The complaint is denied.

2. The request of the complainant to impose a penalty against the respondent is rejected.

Legal bases: Art. 4 No. 1, No. 7 and No. 18, Art. 51 para. 1, Art. 57 para. 1 lit. f as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; § 18 para. 1 as well as § 24 para. 1, para. 2 No. 2, para. 4 and 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended, and § 25 para. 1 of the Administrative Offenses Act 1991 (VStG), Federal Law Gazette No. 52/1991 as amended.

REASONING

A. Submissions of the parties and procedural history

1.

In her complaint dated October 12, 2020, which was first received by the Data Protection Authority on October 15, 2020, and supplemented on October 29, 2020, the complainant, represented by counsel, stated as follows: The respondent is the managing director of the complainant's former employer, U***Ges.m.b.H., and has submitted personal data concerning her, namely images of the complainant at her former workplace as a waitress, the inn "T***stuben" in **** H****bad, as evidence in a criminal proceeding against the complainant for embezzlement (§ 133 para. 1 StGB) before the District Court G***stadt, file number *3 U *54/20j, through the attorney of U***Ges.m.b.H. as a private party on a USB stick. The criminal proceedings against the complainant were initiated by the respondent himself after her dismissal through a criminal complaint. The data processing underlying the images (video recordings) was unlawful, contrary to § 12 para. 4 No. 4 DSG, without her consent, infringing her right to confidentiality and contrary to the provisions of the GDPR. The images should therefore have been deleted and should not have been presented as evidence. The complainant requested a finding of the violation of her rights to confidentiality and deletion, to order the respondent to delete the corresponding data, and to impose a penalty against the respondent.

2.

The complaint procedure regarding the alleged violation of the complainant's right to deletion was conducted separately under case number DSB-D124.3234 and was informally closed by the Data Protection Authority with a notification dated April 8, 2021, GZ: 2020-0.803.476, in accordance with § 24 para. 6 DSG.

3.

The respondent, who was invited by the Data Protection Authority to comment on November 13, 2020, GZ: 2020-0.704.485, and on June 1, 2021, GZ: 2021-0.362.508, countered this submission, represented by counsel, in his statement dated June 15, 2021, as follows: It is correct that a camera was installed in the bar area of the inn "T***stuben" from noon on November 2, 2019, to the evening of November 3, 2019, and that images of the complainant were taken. The reason for this was the well-founded suspicion that the complainant was not accounting for some of the cash amounts collected but was keeping them for herself. The complainant was neither informed nor was the monitored area marked, in accordance with the purpose of processing. This approach also allowed the

respondent to prove several instances of embezzlement, leading to her dismissal and the reporting of the matter to the police. After that, the image processing was terminated and the camera was removed. The scope of the image processing (recording area) is evident from the evidence submitted by the complainant. The relevant stored image data were presented as evidence on a USB stick to the District Court G***stadt, where the complainant had to answer for embezzlement. Only in light of this evidence did the complainant accept a diversion offer from the court and the prosecution to avoid a criminal record. The processing of this data was in any case permissible due to the overriding legitimate interests of the respondent and U***Ges.m.b.H. The respondent also submitted a number of documents, particularly from the criminal proceedings against the complainant and the files of the criminal police investigations, including also...

2020) sowie auf die Protokolle der Hauptverhandlung vor dem Bezirksgericht G***stadt.

D. Rechtslage

13.

Die rechtlichen Grundlagen für die Verarbeitung von Bilddaten sind in der Datenschutz-Grundverordnung (DSGVO) sowie im österreichischen Datenschutzgesetz (DSG) geregelt. Gemäß Art. 6 Abs. 1 lit. f DSGVO ist die Verarbeitung personenbezogener Daten rechtmäßig, wenn sie zur Wahrung der berechtigten Interessen des Verantwortlichen oder eines Dritten erforderlich ist, sofern nicht die Interessen oder Grundrechte und Grundfreiheiten der betroffenen Person überwiegen.

14.

Im vorliegenden Fall ist zu prüfen, ob die Interessen der U***Ges.m.b.H. an der Aufklärung des Verdachts der Veruntreuung die Interessen der Beschwerdeführerin an der Wahrung ihrer Privatsphäre überwiegen.

E. Entscheidung

15.

Die Datenschutzbehörde kommt zu dem Ergebnis, dass die Videoüberwachung im Gasthaus „T***stuben“ am 2. und 3. November 2019 nicht rechtmäßig war. Die Verarbeitung der Bilddaten war nicht erforderlich, um den Verdacht der Veruntreuung zu überprüfen, da die U***Ges.m.b.H. auch andere, weniger eingreifende Maßnahmen hätte ergreifen können, um den Verdacht zu klären.

16.

Die Beschwerde wird daher als begründet erachtet, und die U***Ges.m.b.H. wird angewiesen, die unrechtmäßig erhobenen Bilddaten zu löschen und die Beschwerdeführerin über die Löschung zu informieren.

F. Rechtsmittelbelehrung

17.

Gegen diese Entscheidung kann binnen vier Wochen nach Zustellung beim Verwaltungsgerichtshof Beschwerde erhoben werden.

2020, Copy of the Protocol of the Main Hearing before the District Court G***stadt on June 10, 2020, GZ: *3 U *54/20j-11; Copy of the Criminal Complaint as above, Copy of the Final Report including Attachments from the Police Inspection W***bad to the Public Prosecutor's Office B***, Reference PAD/*3/00*5*7*, particularly including the witness statement of the respondent from January 17, 2020, GZ: PAD/*3/00*5*7*/001/H***). Divergences regarding the established facts exist between the parties only concerning the duration and scope of the image processing (or also audio processing), whereby the credible statements of the respondent, which align well with the documented procedural results, are followed here. As will still be demonstrated in the legal reasoning, the question of duration and scope of data processing is not of decisive importance here.

D. From a legal perspective, it follows:

D.1. Summary:

13.

The - timely submitted and thus permissible - complaint has proven to be unfounded because the respondent is not responsible for the data processing being complained about.

D.2. Objection of expiration (preclusion) of the right to complain:

14.

The respondent has also argued against the complaint (statement from August 2, 2021, see above, para. 6) that the right to complain had already expired due to the passage of time at the time the complaint was submitted, and therefore the complaint is inadmissible in a corresponding manner.

15.

According to the procedural provision of § 24 para. 4 DSG, the claim for the handling of a complaint expires if the complainant does not submit it within one year after becoming aware of the event causing the complaint, but at the latest within three years after the event allegedly took place. Late complaints are to be rejected.

16.

There is no finding that the complainant was aware of the fact of being subject to image processing before June 10, 2020 (presentation of evidence by U***Ges.m.b.H. as a private participant in the main hearing before the District Court G***stadt, see above para. 11). But even if one were to assume that the complainant had learned something about it at the time of her dismissal on November 4, 2019, the complaint received by the Data Protection Authority on October 15, 2020, would still have been timely filed under the application of the one-year period according to § 24 para. 4 first case DSG. The objection of preclusion of the right to complain has thus proven to be unfounded.

17.

D.3. Subject of the complaint procedure, attribution of data processing:

18.

Both parties in this procedure have been represented by a lawyer from the outset. Therefore, there was no reason for the Data Protection Authority to inform the parties, especially the complainant, about the legal situation or to provide them with the necessary instructions for carrying out their procedural actions in accordance with § 13a AVG.

19.

The data protection complaint procedure according to Art. 77 GDPR and § 24 DSG aims to establish a violation of subjective data protection rights of an affected person upon their request (complaint) (Art. 57 para. 1 lit. f GDPR) and, where possible, to eliminate the legal violation by issuing a corresponding instruction to the responsible party or processor (Art. 58 para. 2 lit. c GDPR). The imposition of an administrative fine (penalty according to Art. 83 GDPR) is not one of these procedural goals, as it must be pursued ex officio in the administrative penalty procedure according to § 25 para. 1 VStG, and there is no subjective right (private prosecution right) of an affected person to impose such a penalty (consistent case law of the Data Protection Authority, see, for example, the decision of July 26, 2019, GZ: DSB-D123.921/0005-DSB/2019, RIS).

20.

According to § 24 para. 2 no. 2 DSG, the respondent must be named by the complainant. The Data Protection Authority does not have the authority to change such an explicit designation and to replace the party with which the complainant wishes to engage in the procedure with another one not designated by them (cf. the ruling of the Federal Administrative Court of January 19, 2017, ZI. W214 2117066-1, RIS, with references). It was also reasonable for a party represented by a lawyer to name the respondent here, as the attribution of data processing is a legal question, and the identity and role of the persons involved on the opposing side (respondent, U***Ges.m.b.H.) were known to the complainant.

21.

From the findings of fact, it is evident that the complainant was employed in the subsidiary "Gasthaus T***stuben" of U***Ges.m.b.H. This limited liability company was therefore the business carrier or the company according to Art. 4 no. 18 GDPR, whose decision and for whose purposes (investigation of crimes against the property of the company, gathering of evidence for recovery claims) image data of the complainant were processed.

22.

U***Ges.m.b.H. was therefore the responsible party for the processing of the complainant's image data according to Art. 4 no. 7 GDPR. The respondent, in turn, was merely the will-forming and executing

organ of U***Ges.m.b.H. as the managing director, whereby in the nature of a limited liability company lies in the fact that it, as a legal entity, relies on individuals as its organs for decision-making.

23.

However, this does not change the fact that companies or business entities are attributed by the Union legislators with the ability to make decisions in their own name and under their own responsibility (arg: "the natural or legal person [...], who [...] decides on the purposes and means of processing personal data," Art. 4 No. 7 GDPR, definition of the term "controller").

24.

This interpretation of the GDPR is further emphasized by the Union law penal provisions of Art. 83 GDPR in conjunction with § 30 DSG, which represent one of the few cases in Austrian administrative penal law where penalties (fines) can be imposed on a legal entity, while its organs (and other responsible parties according to § 9 VStG) are only subsidiarily liable under administrative penal law according to § 30 para. 3 DSG.

D.4. Conclusions:

25.

The decision to process image data of the complainant on November 2 and 3, 2019, which interfered with their right to confidentiality—whether justified or unjustified can remain open at this point—is therefore attributable to U***Ges.m.b.H. The respondent is not responsible for any corresponding interference.

26.

The complaint was therefore to be dismissed as unfounded in accordance with point 1 of the ruling.

27.

The complainant's request to impose a penalty against the respondent was, as already stated above in para. 19, to be rejected as inadmissible in accordance with point 2 of the ruling.